

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2825

By: Steagall

AS INTRODUCED

An Act relating to firearm suppressors; creating the Firearms Manufacturing Act of 2025; defining terms; providing requirements for manufacturing firearms, firearm parts and firearm suppressors in Oklahoma; providing certain exemption from federal laws and federal regulations; declaring firearms, firearm parts and firearm suppressors manufactured in Oklahoma exempt from federal regulation; requiring certain stamp on firearms, firearm parts and firearm suppressors manufactured and sold in Oklahoma; directing Attorney General to seek declaratory judgments under certain circumstances; stating applicability of statute; prohibiting certain entities from adopting or imposing rules, ordinances, policies or restrictions regulating firearms, firearm parts and firearm suppressors that contravene state law; prohibiting certain entities and employees from enforcing or attempting to enforce certain federal statutes, orders, rules or regulations; prohibiting certain entities from receiving state grant funds under certain circumstances; authorizing citizens to file complaints with the Attorney General; stating procedures for filing complaint; authorizing Attorney General to seek certain relief if complaint is determined to be valid; providing for the recovery of reasonable expenses and attorney fees; providing for appellate relief; providing for noncodification; providing for codification; and declaring an emergency.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. NEW LAW A new section of law not to be
3 codified in the Oklahoma Statutes reads as follows:

4 This act shall be known and may be cited as the "Firearms
5 Manufacturing Act of 2025".

6 SECTION 2. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1289.31 of Title 21, unless
8 there is created a duplication in numbering, reads as follows:

9 A. As used in this act:

10 1. "Firearm" means a rifle, pistol, or shotgun;

11 2. "Firearm suppressor" means any device designed, made, or
12 adapted to muffle the report of a firearm;

13 3. "Generic and insignificant part" means an item that has
14 manufacturing or consumer product applications other than inclusion
15 in a firearm suppressor. The term includes a spring, screw, nut,
16 and pin; and

17 4. "Manufacture" includes forging, casting, machining, or any
18 other process for working a material.

19 B. For the purposes of this act, a firearm, firearm part, or
20 firearm suppressor is manufactured in this state if the item is
21 manufactured:

22 1. In this state from basic materials; and

23 2. Without the inclusion of any part imported from another
24 state other than a generic and insignificant part.

1 C. For the purposes of this act, a firearm, firearm part, or
2 firearm suppressor is manufactured in this state if it is
3 manufactured as described by subsection B of this section without
4 regard to whether a firearm imported into this state from another
5 state is attached to or used in conjunction with the firearm part or
6 firearm suppressor.

7 D. A firearm, firearm part, or firearm suppressor that is
8 manufactured in this state and remains in this state is not subject
9 to federal law or federal regulation, including registration, under
10 the authority of the United States Congress to regulate interstate
11 commerce.

12 E. A basic material from which a firearm, firearm part, or
13 firearm suppressor is manufactured in this state, including
14 unmachined steel, is not a firearm, firearm part, or firearm
15 suppressor and is not subject to federal regulation under the
16 authority of the United States Congress to regulate interstate
17 commerce as if it actually were a firearm, firearm part or firearm
18 suppressor.

19 F. A firearm, firearm part, or firearm suppressor manufactured
20 and sold in this state must have the words "Made in Oklahoma"
21 clearly stamped on the firearm, firearm part, or firearm suppressor.

22 G. On written notification to the Office of the Attorney
23 General of this state by a United States citizen who resides in this
24 state of the intent of the citizen to manufacture a firearm, firearm

1 part, or firearm suppressor to which subsection D of this section
2 applies, the Attorney General shall seek a declaratory judgment from
3 a federal district court in this state that subsection D of this
4 section is consistent with the United States Constitution.

5 H. The provisions of this section shall apply to:

6 1. The State of Oklahoma, including an agency, department,
7 commission, bureau, board, office, council, court, or other entity
8 that is in any branch of state government and that is created by the
9 Oklahoma Constitution or a statute of this state, including a
10 university system or a system of higher education;

11 2. The governing body of a municipality, county, district, or
12 authority; and

13 3. An officer, employee, or other body that is part of a
14 municipality, county, special district, or authority, including a
15 sheriff, municipal police department, municipal attorney, or
16 district attorney.

17 I. An entity described by subsection H of this section may not
18 adopt a rule, order, ordinance, or policy under which the entity
19 enforces or, by consistent action, allows the enforcement of a
20 federal statute, order, rule, or regulation that purports to
21 regulate a firearm, firearm part or firearm suppressor if the
22 statute, order, rule, or regulation imposes a prohibition,
23 restriction, or other regulation that does not exist under the laws
24 of this state.

1 J. No entity described by subsection H of this section and no
2 person employed by or otherwise under the direction or control of
3 the entity may enforce or attempt to enforce any federal statute,
4 order, rule, or regulation described by subsection I of this
5 section.

6 K. An entity described by subsection H of this section may not
7 receive state grant funds if the entity adopts a rule, order,
8 ordinance, or policy under which the entity enforces a federal law
9 described by subsection I of this section or, by consistent action,
10 allows the enforcement of a federal law described by subsection I of
11 this section.

12 L. State grant funds for the entity shall be denied for the
13 fiscal year following the year in which a final judicial
14 determination in an action brought under the provisions of this act
15 is made that the entity has violated subsection I of this section.

16 M. Any citizen residing in the jurisdiction of an entity
17 described by subsection H of this section may file a complaint with
18 the Office of the Attorney General if the citizen offers evidence to
19 support an allegation that the entity has adopted a rule, order,
20 ordinance, or policy under which the entity enforces a federal law
21 described by subsection I of this section or that the entity, by
22 consistent action, allows the enforcement of a federal law described
23 by subsection I of this section. The citizen shall include with the
24 complaint any evidence the citizen has in support of the complaint.

1 N. If the Attorney General determines that a complaint filed
2 under subsection M of this section against an entity described by
3 subsection H of this section is valid, the Attorney General may file
4 a petition for a writ of mandamus or apply for other appropriate
5 equitable relief in the district court of Oklahoma County or in a
6 county in which the principal office of the entity is located. The
7 Attorney General may recover reasonable expenses incurred obtaining
8 relief under this subsection, including court costs, reasonable
9 attorney fees, investigative costs, witness fees, and deposition
10 costs.

11 O. An appeal of a suit brought under subsection N of this
12 section shall be governed by the procedures for appeals in civil
13 cases under the Oklahoma Rules of Appellate Procedure. The
14 appellate court shall render its final order or judgment with the
15 least possible delay.

16 SECTION 3. It being immediately necessary for the preservation
17 of the public peace, health or safety, an emergency is hereby
18 declared to exist, by reason whereof this act shall take effect and
19 be in full force from and after its passage and approval.
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